
Towards a Model of Latin American Legislatures

SCOTT MORGENSTERN

Ambition, channeled by incentives and institutions, drives politics. Ambitious politicians lead coups and palace takeovers in nondemocracies and engineer election victories and votes of no-confidence in consolidated democracies. In democratic situations, however, these leaders are constrained by party and electoral institutions, constitutions, federal arrangements, and various societal factors. While ambition and political institutions have long driven much research on the United States and other developed democracies, the turbulent histories of Latin American nations have not lent themselves to parallel analyses. In recognition of democracy's movement toward consolidation in much of the region, this book adapts the questions and hypotheses generally applied to studies of the United States and other Western consolidated democratic systems to the analysis of legislative politics in Argentina, Brazil, Chile, and Mexico.

An important change in Latin America is the high value that most voters and politicians profess to place on democracy. At the same time, however, many recent Latin American presidents (maybe not unlike their predecessors or even their U.S. counterparts) have railed against obstructionist, corrupt, or ineffective legislatures. Fujimori used this excuse to close the Peruvian Congress, and Menem in Argentina and Collor in Brazil sought to govern without involving their legislatures. In fear that they would undo his economic reforms and bleed the budget, Pinochet emasculated the Chilean Congress before allowing a transition to civilian rule, and Chavez overtook the odious Venezuelan Congress by (illegally) organizing a plebiscite to create a constituent assembly, which eventually subsumed the Congress. These experiences have helped to create a view that the Latin American legislatures are at best irrelevant to the policy process, if not venal and destructive. *The Economist*, in a single issue for example, argued

that the Venezuelan Congress would “happily avoid the responsibility of having to pass several tax bills” and that Brazilian President Cardoso had to “brow beat Congress into approving long-languishing reforms.”¹ While more cautious, recent academic work has not loudly disputed this view and has often focused on how presidents avoid or undermine the legislature.

While many of the criticisms have validity, the representative wings of these governments have not been limited to negative participation. The legislatures’ positive roles in peace negotiations (as in Mexico), tax reform (in Mexico and Argentina), economic reform (in Brazil), or uncovering corruption (again in Brazil) are not examples of aberrant behavior.² Neither is their involvement in interbranch bargaining. But, this more prosaic pattern of politics – the alternative to presidential decree-wielding – has drawn little attention.

In recognition of the importance of legislative politics to the democratic process, this book seeks to redress this oversight. In our effort we focus on legislators’ ambitions, since we hope to better understand not just the degree to which the legislatures are overrun by the presidents (which is less than sometimes assumed), but also the source of their behavioral patterns. This book, then, has theoretical and empirical goals. The primary empirical question is, How do legislatures function in the new democratic period? Further, even if legislatures were weak in the past, how and why have their roles changed, and how do these roles differ across Latin America? Theoretically, even if we accept the notion that the president holds the single most important elected position in Latin America’s politics, we still want to understand why the legislatures are not more assertive. More specifically, how does variance in partisan, electoral, and constitutional arrangements affect the legislatures’ structure and function? In short, we have chosen to study Latin America’s legislatures out of a belief that, although they may not take the most prominent role in the policy process, democratic politics revolve around their most representative bodies. It is therefore not possible to gain an understanding of the nature of politics in these countries without a careful analysis of their legislatures.

The purpose of this chapter is to examine whether and how models of Western democratic legislatures that are based on assumptions that politi-

¹ February 6, 1999, pp. 33–34.

² *The Economist* again provides a good example. Their reports about these issues show clear surprise with the positive legislative role (see, for example, November 6 and 27, 1999).

Towards a Model of Latin American Legislatures

cians rationally follow their ambitions are applicable to our cases. As in studies of developed countries, we do assume that politicians in the four countries under study here are rule-bound, adhering to a given set of rules implied by the particular constitutional context. The politicians thus see only electoral paths to executive and legislative offices, and they see these offices as the source of policy change. This does not imply that the bureaucracy, the central bank, the International Monetary Fund (IMF), or even the military are uninvolved. It means, alternatively, that their pressures are registered as electoral threats, not as threatened military coups. When “democracy has become the ‘only game in town’” and recourse to coercive force is only a remote possibility, comparativists award the label “consolidated democracy” (Linz and Stepan 1996. p. 5).

This book focuses on Argentina, Brazil, Chile, and Mexico, countries that if not already consolidated are moving clearly in that direction. Since 1997, the approval of Mexico’s budget has been characterized by inter-branch bargaining and a highly spirited and public debate centered on social spending and economic theory, a far cry from the executive-dominated politics that prevailed for over 60 years. Recent workers’ demonstrations in Argentina were met with police forces and legislative demands on the administration instead of calls for military action. Chile’s 1997 elections saw some slippage of their center-left coalition, but also the naming of Pinochet’s replacement. Pinochet’s arrest in Britain in 1998 brought some demonstrations and a short boycott of the Congress by the political right, but democracy was never truly threatened. And in Brazil, “political survival” now refers more to patronage politics and elections than to pacifying the military.³

In moving past the period when politicians did not expect democratic institutions to last, we are safe in applying Western-style assumptions that politicians will respond to incentives inherent within a democratic system. The authors in this book thus look at the structures (such as the party system), rules (such as electoral rules, veto provisions, and prohibitions on reelection), and incentives (such as an interest in reelection) that drive democratic legislative politics by acting on individual legislators. Of course, other factors, such as ideology, resource limitations, international economic pressures, and domestic social exigencies, also push on legislators. This model, then, is like the toy airplane discussed by King, Keohane,

³ The term political survival comes from Ames (1987). See Ames’ studies on legislators’ strategic budgetary amendments (1994, 1995).

and Verba (1994). Like the toy, we are representing just a piece of reality with the full understanding that our model does not capture all of the complex conjunction of forces acting on legislators. Still, the model serves as a very useful representation, highlighting a crucial set of forces that influence the behavior of legislators and legislatures.

In sum, we have chosen to study legislative politics in four Latin American countries where politicians adhere to their constitutional frameworks and work without (or at least with a greatly reduced) fear of military intervention. This basic similarity with Western democracies justifies an in-depth study of Latin America's democratic institutions and encourages us to employ the outline of a model that has gained a wide application in studies of Western legislatures. We draw most heavily on studies of a comprehensively studied legislature that, like the Latin American cases, operates within a presidential regime: the U.S. Congress.

Although we rely heavily on models of the U.S. Congress since it is a highly studied presidential regime, we also find that models of multiparty parliamentary systems have interesting parallels with the multipartisan Latin American legislatures. Models of multiparty parliamentary systems generally focus on coalition governments that arise in the wake of the executive's lack of a parliamentary majority. This is the same situation that we find in much of Latin America. Of course the parliamentary systems differ in at least one fundamental way from their Latin American counterparts: Since legislators' tenure in office is related to their continued collective support of the executive, models of parliaments can often assume that legislators in the executive's coalition have an interest in avoiding conflict with the executive. Still, just like a prime minister, a president must command the support of a majority in the legislature to ensure passage of his legislation.⁴ This fundamental similarity leads us to draw on the European models in our effort to create a general model of legislative politics that is useful in the Latin American context.

The remainder of this chapter first describes the principal questions, many of which are derived from studies of the U.S. Congress, that have driven the studies in this volume. In so doing, it explains the three themes – executive–legislative relations, parties and legislative structure, and

⁴ There are some exceptions. When the president has constitutional decree powers, for example, he can avoid the legislature. It is quite questionable, however, whether a president could continue to decree legislation without considerable legislative support (see Carey and Shugart 1998).

Towards a Model of Latin American Legislatures

policy studies – around which the book is organized. Throughout this volume the authors take the assumption common in U.S. models that politicians everywhere are ambitious. However, other assumptions in the U.S. model are not directly applicable to other cases. The second half of this introduction, therefore, dissects the U.S. models in a search for independent variables (such as career goals, party alignments, the electoral system, and constitutional structures) that the models disguise as assumptions. In addition to the assumption about ambitious politicians, these variables guide the subsequent chapters. They all show how the tremendous range of values on these independent variables accounts for differences in the legislatures' relations with their executives, their organizational structures, and their policy roles. In the concluding chapter, I collect the wealth of information from the case studies to display, compare, and contrast the full range and effects of these variables.

The Questions and Dependent Variables

In part because they have been overshadowed by presidents and frequently closed by militaries, Latin American legislatures have received limited study and are not well understood. Therefore, to explain their organization and activity it is necessary to first generate a view of what we are explaining. There are many different angles from which to view these legislatures, as studies of the current and historical U.S. Congress bear witness. Each angle uncovers a different aspect of the full picture. One study cannot hope to integrate all of these aspects into a single universal vision, but we do hope to identify several key perspectives.

At their base, studies of the U.S. Congress focus on the translation of interests – be they of the president, citizens, interest groups, bureaucrats, or legislators – into policy. To explain these competing demands, scholars have undertaken three types of studies related to the legislature: studies of executive legislative relations; studies of political parties and the structure of the legislature; and studies of the policy-making process.

This book is organized around these three themes. Unlike most collections, however, we do not try to answer these questions by offering single case studies on individual countries. Instead, we offer three independent studies for each of our four cases. We have less geographic coverage, but the tradeoff has yielded an important depth in the analysis that would be unattainable in the standard single-chapter format.

Questions About Executive–Legislative Relations

Whether focusing on narrow policy outcomes – such as tariff rates (Schnattschneider 1935), budget deficits (McCubbins 1991) – or tax policy (Birnbaum and Murray 1988) – or theoretical issues – such as the effects of campaign finance laws (Sorauf 1992) or the issue of reelection (Mayhew 1974; Carey 1996) – studies of the U.S. Congress safely assume that legislators are in powerful positions to pursue policy changes to further their goals. There has been little reason to pay heed to a question often raised about Latin American legislatures: Does the legislature play an important policy role?

In Latin America, many casual and academic observers alike assume that legislators often forego their constitutional powers, abdicating in favor of the executive. In part this perception stems from studies done while dictatorships ruled much of Latin America. Kornberg and Musolf (1970), for example, cite Packenham's study of Brazil in questioning whether some of the legislatures' "principal function of is now, or will be in the future, one of enacting legislation" (p. 8). Excepting Chile, Costa Rica, and Uruguay, Astiz (1973) and Mezey (1979) classify the Latin American legislatures as "marginal" and "rubber-stamp legitimizers," respectively. More recent work also questions the importance of the legislatures. O'Donnell's (1993) oft-cited and influential paper purports that Latin American democracies are a "new species," characterized by presidents who view courts and legislatures as "nuisances," not a vital part of a democratic polity. This view is reinforced by Linz's (1994) proclamations about the winner-take-all nature of presidential systems and the recent spate of studies that focus on the presidents' excessive use of decree powers, especially in Argentina under Menem, Brazil under Collor, and Peru under Fujimori.⁵ The very useful contribution (and the rest of their collection) by Mainwaring and Shugart (1997) is a partial exception in that they take the president's legislative support into account in explaining the variation in presidential systems. Still, in focusing on the presidents' legislative powers, they have left aside a full analysis of the legislature itself.

⁵ While the introduction to their volume on decree powers carefully sets up the limitations of decree powers, the focus of Carey and Shugart's (1998) interesting volume is the presidents' use of these powers. See the chapters by Ferreira Rubio and Goretti on Argentina, Power on Brazil, and Schmidt on Peru. Also see the chapters by Mainwaring (on Brazil) and Jones (on Argentina) in Mainwaring and Shugart (1997).

Towards a Model of Latin American Legislatures

Given this general perception of limited influence, if not irrelevance, a first goal of our book is to examine the ways in which the legislatures *do* involve themselves in the policy process. To this end, the chapters in the first part of the book develop a number of indicators of legislative activity. It is difficult, however, to fully grasp a legislature's role, since, as Cox and I argue in the epilogue, legislatures can assert themselves proactively or reactively. Further, it is often difficult to discern the legislature's policy influence, since, in addition to overtly proposing or killing legislation, it can discreetly lobby for favorable executive proposals or amend bills to its liking. In Huber's (1996) study of the French legislature, for example, he finds that presidents use restrictive amendment procedures to keep pre-arranged deals from falling apart. Thus it appears that the legislature is not amending bills, but in reality the negotiations took place before the legislation formally arrived at the legislature. In short, if a legislature is effective working behind the scenes, congressional floor activity may not be a good indicator of the legislature's influence.

This empirical problem is evident in spatial and delegation models of executive-legislative relations. For example, following Romer and Rosenthal's (1978) classic model, if the executive is the agenda-setter, he will propose the policy nearest her/his ideal point that the legislature will accept. The reverse is also true; when the legislature proposes a policy, it will choose in order to maximize its utility and still insure against an executive veto. In either case the second player would appear weak, since its best response is to accept the policy proposal. The player is not weak, however, since the proposal was based on the first player's anticipation of what the second player would accept.

On top of these methodological problems, studies of Latin American legislatures must face the stereotype that the primary policy role of these institutions has been either neglect and acquiescence or obstructionism. The methodological problems have not slowed rigorous analyses of the U.S. Congress, and they should not force us to shy away from such studies of this crucial democratic institution in consolidating democracies. Further, our studies show that the legislatures, at least today, do much more than obstruct executive policy; and even if the historical examples of intransigence were the legislatures' primary contribution to policy, we should ask why the legislatures are relegated to such a policy role.

The four chapters in the book's first part (and others) confront the methodological challenges and give evidence that these legislatures are highly relevant to policy outcomes. These studies look at how presidents

win legislative support for their policy proposals and the degree to which the legislatures seek to initiate their own policies or modify those of the executive. In so doing, they provide evidence that Cox and I use in our epilogue to argue that, although none of the legislatures approaches the consistent policy strength of the U.S. Congress, none are perilously weak either. In terms of policy-making power, we classify these legislatures as generally “reactive,” as opposed to “proactive.” This implies that, while the legislatures rarely initiate legislation, they are often involved in negotiating over policy issues behind the scenes and vetoing or amending executive initiatives.

To support this general view, the authors in the first part discuss the methodological problem of hidden influence and also present several types of indicators of the legislatures’ policy roles. Argentina is a case in point. Mustapic argues that the president must use numerous tools to deal with this “potentially recalcitrant” body. The presidents (Menem in particular) have been lucky to have at their disposal institutional powers and the ability to dole out ministerial and other jobs. She also argues, however, that part of the legislature’s acquiescence has been due to the situation of economic and political crisis facing the nation.

In spite of these presidential powers, Mustapic argues that the legislature can and does disrupt the executive’s policy priorities by simply failing to convene for sessions. She also shows that the legislature has been proactive enough to invite relatively frequent presidential vetoes.

Siavelis also notes the challenge of identifying quantifiable expressions of legislative influence in Chile. As a partial response he documents the high percentage of legislation that requires more than the legal minimum of steps (*trámites*) to pass through the legislature, as well as portrays data about legislative initiatives. He further argues that institutional structures (such as the legislature’s ability to set the agenda and a ministry-level office of interbranch relations) and norms (such as the presidents’ willingness to meet with Congressional leaders) have helped cement the legislature’s influence.

There have been two primary and conflicting concerns about the Brazilian legislature. On the one hand, Mainwaring, Linz, and others who denigrate multipartism worry that Brazil’s fractious legislature will be inefficient and likely to thwart attempts at reform. On the other hand, some studies, particularly those of the Collor years,⁶ fear the Brazilian president’s

⁶ Cardoso, too, has issued numerous decrees.

Towards a Model of Latin American Legislatures

ability to avoid legislative interference, thus chancing a move in the direction of “delegative democracy” (O’Donnell 1993).

While the second concern should not be dismissed, presidents have not been free to emit decrees without restriction. The most important legislation during Cardoso’s term, including constitutional changes to allow for reelection of the president, pension reform, and administrative changes, have gone through the regular legislative process. It seems likely that other controversial legislation would also require legislative assent to avoid significant uprisings. Further, as Carey and Shugart (1998) note, the legislature is empowered to reject decrees, and recent changes have shut off the important loophole that allowed presidents to reissue decrees once their effectiveness formally ended.

In this vein, Amorim Neto’s study focuses on the first issue, asking how Brazilian presidents gain legislative support in a legislature housing few of their co-partisans. He answers that particularly weak presidents, like Collor, have relied on decrees to avoid legislative roadblocks. Other presidents, however, have built support through the careful distribution of cabinet posts. He then shows a solid relation between a party’s support for executive initiatives, that party’s unity, and its representation in the cabinet.

Until very recently, the Mexican Congress has been the epitome of weakness. De la Garza’s (1972) study well characterized most views of this institution. He found no significant policy role for the Mexican Congress and thus focused on its role in legitimating the regime. Casar’s study here finds evidence that the long-languid legislature is undergoing profound changes. “The post-1997 Congress,” she notes, “has already stopped and altered several important executive initiatives, affecting social security legislation, fiscal measures, and the peace accords in Chiapas.” There is also quantitative evidence of the change, such as the dramatic rise in the rate of approval for bills sponsored by legislators.

Questions About Parliamentary Parties and Legislative Organization

Mayhew (1974) wrote, “If a group of planners sat down and tried to design a pair of American national assemblies with the goal of serving members’ electoral needs year in and year out, they would be hard pressed to improve upon what exists” (p. 81). Studying the legislature’s organization, then, is a reflection of the institution’s locus of power. The power of committee chairmanships, for example, reflects the individualistic nature of the U.S. Congress. The legislative structure also has implications for the

representation of interests, the type of policy that may ultimately survive the process, and the legislature's ability to carefully scrutinize the executive branch. As such, the goal of Part III is to characterize the structure of the Latin American legislatures and explain why they do not follow the organizational path illuminated by the U.S. Congress. In explaining the issues that the chapters address, I will focus on three themes that are prominent in the American literature: procedural coalitions, committee systems, and floor voting patterns.

Procedural Coalitions Most legislative decisions are determined by majority rule. The basic question, therefore, is, Who joins the majority? Is the group stable or changing? Further, we might expect that "procedural coalitions" – those legislators who join to elect legislative leaders, approve voting rules, select staff, and dole out committee assignments, or generally organize the legislative business – may be quite different from those who form around particular policy initiatives.⁷

Models of the U.S. Congress explain how the majority party operates as a "cartel," monopolizing procedural advantages in the legislative process (Cox and McCubbins 1993; Aldrich 1995). These advantages unquestionably allow substantial influence in the content of legislation and the distribution of resources. This implies that we should expect that procedural coalitions also form in other countries – as appears to be the case in Europe (Doring 1995). Several of the studies in this volume therefore investigate how variance on the party structure or other variables affects the shape of the power structure in the Latin American legislature.

Nacif's careful look at the governing committee of the Mexican Congress best exemplifies this type of study. His chapter details how the Institutional Revolutionary Party (PRI) used its majority position to control the legislative process until the recent rise of the opposition. He also explains how these changes have affected the legislature's procedural coalition. Until a 1991 reform, the PRI leadership made decisions without much regard for other parties. However, since the reform, the parties have been able to negotiate for their share of committee posts, including chairs and other leadership positions.

The other chapters in Part III also follow this line of inquiry. Carey argues that the electoral alliances form procedural coalitions in Chile. He states,

⁷ This definition follows Jones (1968) and Cox and McCubbins (1993).

Towards a Model of Latin American Legislatures

“In conjunction with the traditional parties, they organize nominations for legislative elections, the legislative committee system, and floor voting.”

In Argentina, Jones describes the Peronist or Justicialista Party (PJ), which held a complete or near majority as the prime mover in the legislature. He explains that the party designates its own and a chamber leader, who together operate with relative autonomy, given the high level of party discipline. A set of important resources available to the leaders, in turn, reinforces the party discipline.

Ames' chapter is largely a study of the lack of a procedural coalition in Brazil, in that party leaders are too weak to overcome dissension within their ranks. Samuels' view is that state delegations there play an important role in organizational and agenda issues. He presents evidence that, while partisanship determines the distribution of positions in committees generally, and in particular the joint budget committee, the committee structure privileges state delegations.

Committee Systems Since membership on key committees is a highly valued political resource in the U.S. Congress, and control of committee seats is a key source of power for party leadership, studies of the committee system have contributed greatly to our understanding of the decision-making process in the legislature. The U.S. models emphasize the degree of autonomy of the committees from the party leadership (Cox and McCubbins 1993; Gilligan and Krehbeil 1990; Lowi 1979). Although their interpretations of similar data vary tremendously, this large body of literature has defined the way in which we think of personalistic and party politics. From these studies we have learned of the revolving doors in the iron triangle (Lowi 1979), the power of committee and subcommittee chairs (Jones 1968; Rohde 1991), and finally the reason why party leaders have some sway over rank-and-file members (Cox and McCubbins 1993).

Similar questions about committee systems in Latin American legislatures have not been asked. Some of the studies in this volume therefore make a first stab. Nacif's study, for example, looks specifically at the hierarchical nature of the committee structure in the Mexican Congress. Carey's study discusses the importance of seniority in Chile's lower house, and Londregan looks at the structure of voting in the labor committee of the Chilean Senate. Unlike the U.S. Congress, individual legislators are not the organizing powers of these legislatures. Still, these studies support Mayhew's contention about the way in which the committee structure reflects the goals of those empowered to shape the institution. In the

Mexican case, the committees further the goals of the majority party. Both Casar and Nacif also show that the PRI's loss of majority control, in turn, has brought about important changes in the composition and function of the committees. In Argentina, Mustapic argues that leaders use assignments to generate support, both within and among parties. Further, since reelection rates are low, the number of committee posts has grown to provide leaders more posts to offer to pliant legislators. In explaining the inordinate weight of the executive, it is telling that the executive has formal representation in the committee meetings. Jones furthers this line of inquiry. His study gives preliminary evidence of the power of the House President in Argentina, who in consultation with party leaders determines how to distribute committee assignments and leadership positions. He notes that these are important decisions since, as in the United States, some committees are much more valuable to legislators than others. The power structure is further evident in a leadership committee composed of the chamber president and vice presidents, along with party leaders, who set the legislative agenda and determine who will participate in debates. Next, as noted previously, Samuel's study of Brazil (in Part IV) suggests that the committees support state, not partisan, interests. In Chile, where reelection is more common, Carey reports that a seniority system is in place in the lower house. Moreover, there is a hierarchical relationship among committees, as all finance bills – even in the Senate, where the Concertación lacks a majority – must pass through committees staffed by party leaders. Still, in spite of this organizational mechanism, Carey is careful to point out that committee leaders' power is limited in that their agendas are often overridden by the president. Londregan's study (also in Part IV) adds more to our knowledge of the Chilean committee system, with a focus on the Senate. Interestingly, he finds that while seniority is important, the parties, and not the individuals, hold the seats. As such, the membership is somewhat fluid – and the changes can have dramatic impacts on the outputs from the committees.

Floor Voting Coalitions Floor voting is the ultimate indicator of a party's behavior because it helps to identify a party's policy direction and coherence, policy coalitions, and the willingness of a party to work with the executive. Further, party unity, which results from a combination of disciplinary resources available to leaders and ideological coherence among legislators, can indicate the degree to which voters can think of parties as collectively responsible for a policy outcome. As such, the sources of party

Towards a Model of Latin American Legislatures

unity (or lack thereof) have been perennial themes in literature in both the American and comparative traditions. The undisciplined U.S. Congress is blamed for the high influence of special interests and general waste in the federal budget (c.f. Fiorina 1989; Lowi 1969). Parliamentary systems have generally done a better job at maintaining voting unity, due to the threat of early elections and the executive's use of cabinet posts to maintain support (Laver and Shepsle 1990; Laver and Schofield 1990). Bowler, Farrell, and Katz (1999), in the first text-length study of the subject, however, remind us of the faction-riddled Italian parliament. Contributors to their volume then discuss the factors that strain and support party unity as well as the effects of unity on interpartisan relations, the maintenance of coalitions, relations with party activists, formation of role of party unity, and other factors in a variety of European countries.

Due to its centrality to our understanding of the inner workings of a legislature, the patterns of floor voting are a focus of most of the studies in this book. Amorim Neto, for example, follows the literature on parliamentary democracies and argues that the Brazilian presidents (among others) have also used cabinet posts to gain legislative support. Ames also focuses on party unity in Brazil, testing a multivariate model. His model supports a theory about the role of reelection incentives, the importance of the party to a legislator's reelection, the pork barrel, and state politics in explaining whether legislators will stick with their parties. For Chile, Carey devises a unique indicator of legislative unity that takes into account the relative importance of a bill and absenteeism. He then uses this indicator to show that the Chilean parties generally revolve around the two primary coalitions. And finally, Weldon's chapter on Mexico (in Part IV) explains how power came to be concentrated in the presidency, which implied the loss of autonomy of individual legislators and the rise of strict party discipline.

Questions for the Policy Studies

As Birnbaum and Murray's (1987) study exemplifies, case studies of the policy process are very helpful in illustrating the dynamics of executive-legislative relations and highlighting the importance of the legislature's organization. The fourth part of the book seeks to provide a similar synthesis of these themes.

Several themes are common to these four studies: the role of the electoral system; the importance of party discipline; and the dominant, but not

supreme, role of the president. In discussing tax reform in Argentina, Eaton's chapter shows that legislators' regional ties, which are a function of the electoral system, generated opposition to the president's proposed plan. He concludes that, while the legislature's role is "reactive," most literature clearly underestimates its policy significance. Eaton's chapter also speaks to the themes of executive–legislative relations, as well as the importance of the legislature's organization. In particular, he illustrates how the president's loyalists in the legislature controlled the agenda to advantage Menem's policies, and how the Peronist (Justicialist) Party (PJ) used its procedural advantages to pass the reforms.

Samuel's study of Brazil focuses on the budget process, its reform, and legislators' efforts to procure pork-barrel resources. For Samuels, executive–legislative relations are less important, but legislator–governor relations and the committee structure play central roles. The governors, he explains, control many resources that are crucial to the political careers of the legislators. This has moved legislators to structure the committee system, which determines which interests are rewarded, to favor states over parties.

Londregan's study stands out somewhat from the others in that it focuses on the Labor Committee in the Chilean Senate and in particular on the role of the nonelected senators. As independents who are not generally interested in reselection, these senators are relatively free from electoral and party pressures, and, as a result, ideology drives their voting decisions. The study also highlights the importance of the committee system structure. Given that the senators do not hold their committee seats permanently, and given that the committees are quite small (just five people), any individual changes can determine policy outputs.

Finally, Weldon's study, as noted earlier, focuses on the budget process in Mexico. His more historical look first asks how, in light of the legislature's significant constitutional prerogatives, the president came to dominate the budget process. Power was not concentrated in the presidency until 1928, but the presidents did enjoy decree powers and procedural advantages that marginalized the legislature's participation. Once presidents had won "metaconstitutional powers," the legislature stopped blocking or amending the presidents' budgets, and the presidents therefore stopped using procedures that evaded the legislature.

Weldon's chapter also shows how the PRI's recent loss of its dominant position has interacted with the constitutional structure in affecting the committee structure and the budget process. For example, instead of over-

Towards a Model of Latin American Legislatures

representation on committees and control of all chairs, the new system allocates chairs proportionally to parties and ended the excessive power of chairs over the agenda (including whether a meeting would be held) and the chair's extra vote in the case of ties. Finally, Weldon's chapter is very useful in detailing the importance of technical issues that are often the focus of studies about the U.S. Congress. For example, he explains how parliamentary rules in Mexico limit the ability of legislators to suggest amendments. In addition, he describes two interesting controversies about the budget stemming from obscurity in the constitution. Not only does the constitution fail to specify the budget's "reversion point" (i.e., the amount that would be spent in the absence of a budget), but it also leaves as dubious the president's ability to veto the budget legislation, since the budget bill is technically not a law (since it does not go through the Senate).

Assumptions and/or Independent Variables: Goals, Strategies, Parties, and Power

A second broad goal of this book is to move toward a general model of legislative politics and test the impact of several variables on legislative politics. Models purporting to explain congressional politics in the United States rely on several implicit and explicit assumptions regarding (a) legislator goals, (b) strategies to obtain those goals (which are based on the electoral system), (c) the distinctive party configuration, and (d) the given constitutional balance of power. A general model cannot make the same assumptions, even with regard to the most basic assumption about U.S. legislators' drive for reelection.

Mayhew's (1974) description of the "electoral connection" is perhaps the most straightforward statement of how ambitions determine legislative behavior. That model, and its extensions by numerous other scholars, explains the impact of the legislators' goal of reelection and their strategies to attain it. Mayhew uses the model to explain how legislators build the legislative machinery in "single-minded" pursuit of their goal: reelection. Fiorina (1989) uses the model in developing a theory to explain the growth of the bureaucracy; Lowi (1969, 1979) uses it to explain why legislators seek seniority and expertise in committees; and Aldrich (1995), Cox and McCubbins (1993), and Rohde (1991) use it to explain the growth and sustenance of political parties. Each of these authors points out that while legislators may have other important goals, they assume that the

proximate goal is fulfilling their static ambition. That is, in order to fulfill any other goal, legislators must first win reelection.

The goal of reelection is the first, and for many the most important, implicit assumption in these models. The assumption of “static ambition” (Schlesinger 1991) is supported by statistics that show an extremely high rate of reelection to the U.S. Congress. But, as the case studies detail, rates of reelection are relatively low across our Latin American cases. In our cases they run the gamut, from the prohibition of immediate reelection in Mexico to a small minority returning to their seats in Argentina to Brazil, where 70% of the legislators seek reelection but many fail, and to Chile, where a large majority seek and win reelection. This implies that we cannot employ the assumption of reelection – or static ambition – across all cases. Instead, our general model must consider the implications of following other career paths, such as through the state or federal bureaucracy, higher elected jobs, or a return to private business.⁸

The second basic assumption in the U.S. model regards the strategies for fulfilling reelection goals. Since they are dealing with just the U.S. case, U.S. scholars are safe in taking for granted the electoral system. That is, they implicitly assume that legislators compete under plurality rule in single-member districts. Further, if there is any internal competition, it is only in primaries (and there, incumbents are generally free from strong challengers). In addition, these authors rightly assume that laws or party rules place no important restrictions on a candidate’s nomination. These assumptions lead the studies to focus on how candidates work to gain a plurality of their district’s votes and are generally unconcerned with the candidate nomination process or intraparty competition.

As in the case of static ambition, the strategy assumptions are inapplicable in a comparative study. Some candidates must compete against their co-partisans during general elections, others must win the favor of party leaders to win a spot on the ballot, and others who sit atop their party’s proportional representation list need only worry that their party wins a small fraction of the vote. Electoral and party rules, then, become independent variables in a comparative study of campaigning strategies. Further, if legislators are uninterested in reelection, then although the general model of ambition theory should consider how they won election

⁸ Career paths of Mexican politicians have received the most academic attention. See Smith (1979) and Camp (1983) for the most detailed studies. On Brazil, see Samuels (this volume and 1998).

Towards a Model of Latin American Legislatures

in the first place, the theory must also consider strategies for fulfilling other goals, such as loyalty to a governor in return for access to the state bureaucracy.

A third background assumption in U.S. models is that there are two stable political parties. This assumption is most crucial to Cox and McCubbins (1993), who assume that the majority party monopolizes the decision-making structure of the legislature to serve its own interests. While these same incentives to form a majority party (as explained by Aldrich [1995] and Cox and McCubbins [1993]) may exist universally, the partisan structure of other countries varies tremendously.

The fourth assumption is that presidents and legislators operate under the U.S. Constitution. That is, the president can only veto a bill in its entirety, the legislature can override a presidential veto by a two-thirds vote of both houses, the president cannot officially initiate legislation, the legislature can amend the budget and other bills without restriction, and so on. This assumption of course fails in a comparative context.

In sum, models of the U.S. Congress based on the ambitions of the legislators implicitly interact a large number of variables. A similar comparative model, therefore, must identify these variables and account for the interactions. A multivariate model would first differentiate the U.S. and most Latin American legislators based on their static or progressive ambition. A full model could also divide the legislators according to their motivation for entering the legislature (power, prestige, or policy concerns) and where their ambition might lead them (state or federal elected political careers, state or federal appointed positions, private business, etc.). The model would then have to account for different numbers of parties, the relationship of the parties to the executive, and the internal unity of those parties. Also, different constitutional arrangements that affect the relative power of the legislatures would have to be quantified. Finally, after specifying each of the variables, the model would have to allow for interactions among multiple combinations of the variables. For example, while the electoral system may well have an independent impact, its impact is surely mediated by the party and constitutional systems.

Specifying these independent variables and considering their interactions is an important goal of this book. We also seek to specify the dependent variable, the legislatures' policy role, by looking at executive-legislative relations and the policy process. These variables, however, do not lend themselves to cross-national multivariate quantitative models, and instead point to the need for careful, theoretically motivated case

studies. For this reason, as opposed to descriptive histories, the following chapters examine the implications of different combinations of the variables that we have identified on key aspects of legislative politics. In investigating different pieces of this model, our contributors show that the Latin American legislators (a) are not homogeneous reelection seekers, (b) follow different strategies into office, (c) are restrained by different constitutional arrangements, and (d) operate within vastly different party alignments. As a result, the Latin American legislatures do not look or act like the U.S. Congress. I take up this discussion in the conclusion, borrowing the wealth of data provided in the following chapters to compare the countries along these various dimensions and to consider the effects that our authors attribute to them. Then, in the epilogue, I join Gary W. Cox in exploring a general typology of legislatures based on the information from the case studies. In a further move towards identifying the dependent variable, we propose that the U.S. Congress belongs at one end of a continuum labeled “proactive,” while the Latin American legislatures belong closer to the other end, labeled “reactive.” This is only a first step towards a general model, however, since, as is clear in the case studies, there is a great deal of variability among countries, and even across time in a single country.

Summary

In spite of their vital democratic functions, Latin American legislatures have escaped careful scrutiny. To begin to rectify this oversight, the assembled authors adapt pieces of the Mayhewian model of the U.S. Congress (and its extensions) to these cases. The chapters in this volume all apply the most basic assumption in these models, that legislators’ ambitions drive their behavior. However, assumptions about the specific goals that legislators hope to attain, and how they might attain them, become independent variables in a comparative model. Even the foremost explicit assumption in the U.S. model – legislators’ proximate goal of reelection – is not directly applicable. As a model based on politicians’ ambitions would predict, the result of different values on these variables results in legislatures with very different functions and organizational forms.

In this book we cannot claim to develop a full model, but we do investigate conjunctions of variables affecting legislative structure and behavior. Since we cannot start to judge the impact of any independent variable without a notion of the final product, much of our effort is spent describ-

Towards a Model of Latin American Legislatures

ing the Latin American legislatures and evaluating their political roles. The parts of this book are set up to identify three specific features of the legislatures, namely, their roles and relationships with the president, their internal organizational structures and their policy roles. The chapters go much further, however, in that they also posit causal relations tying the outcomes that they describe with reelection drives, the electoral and party systems, constitutional prerogatives, and other variables. Thus, in addition to offering important insight into the inner workings of the particular cases, each chapter provides an example of how to adapt and apply U.S.-style models to a comparative context. Together the chapters provide much of the initial analysis necessary for building a comparative theory of legislatures in presidential regimes within a rational choice framework, and, as such, this volume should give directions for further research on the structure and function of the representative institutions in Latin America's new and consolidating democracies.

